

Case Description

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1968 S C M R 533

Present: S. A. Rahman, Hamoodur Rahman and Muhammad Yaqub Ali, JJ

ZAINUL ABDIN-Appellant

Versus

THE STATE-Respondent

Criminal Appeal No. K-3 of 1968, decided on 14th February 1968.

(On appeal from the judgment and order of the High Court of West Pakistan, Karachi Bench, dated the 23rd October 1967, in Confirmation Case No. 631 of 1964).

Penal Code (XLV of 1860), S. 411/414 read with S. 511-Attempt to commit offence-Punishment awarded cannot exceed one half of maximum provided by substantive offence-Maximum sentence under Ss. 411/414 : 3 years-Sentence of 2 years R. I. under Ss. 411/414 read with S. 511-Illegal.

Muhammad Hayat Junejo, Advocate, Supreme Court instructed by Abdul Hafeez Memon, Attorney for Appellant.

Muhammad Haleem, A.A.-G. West Pakistan, instructed by Ijaz Ali, Attorney for the State.

Date of hearing: 14th February 1968.

JUDGMENT

S. A. RAHMAN, J.-This appeal was admitted only to consider the question of sentence awarded to Syed Zainul Abdin for an offence under section 411/414 read with section 511 of the Pakistan Penal Code.

The appellant was caught while negotiating the carriage of certain tin plates which had been stolen from the Railway premises. He was sentenced to two years' rigorous imprisonment by the trial Magistrate and the sentence was upheld on appeal by the High Court.

Mr. Muhammad Hayat Junejo has contended before us that the sentence was illegal as under section 511 of the Pakistan Penal Code, the maximum sentence that could have been imposed could not have exceeded one half of the maximum sentence provided for the substantive offence. That maximum sentence was three years and therefore, the appellant's sentence could not have exceeded a year and a half. This position is conceded to be correct by Mr. Muhammad Haleem, on behalf of the State.

Mr. Muhammad Hayat Junejo also draws our attention to the fact that the principal culprits in the case, who were convicted under sections 379 and 379/109, P. P. C., received sentences of two years' rigorous imprisonment each. The appellant has already served about 4 months of his sentence. We consider that the demands of justice would be met by reducing the sentence of the appellant to six months' rigorous imprisonment, together with a fine of Rs. 1,000, or in default of payment three months imprisonment further. We order accordingly.

Order accordingly.